IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH- V

CA (CAA) 95/230-232/ND/2022

IN THE MATTER OF:

Sections 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

ALLIANCE REVOLUTION INFRA PROJECTS PRIVATE LIMITED
F-6/5, Vasant Vihar,
New Delhi-110057,
South West Delhi

.....Applicant No. 1/Transferor Company No. 1

AND

BIGGEST GOODS CONSULTANCY AND TRADING PRIVATE LIMITED
Khasra No. 140, Village Gadaipur,
New Delhi-110030,
South Delhi

.....Applicant No. 2/Transferor Company No. 2

AND

BLEND COMMERCIAL INFRA PRIVATE LIMITED
F-6/5, Vasant Vihar,
New Delhi-110057,
South West Delhi

.....Applicant No. 3/Transferor Company No. 3

AND

CHRONICLE CLOTHING PRIVATE LIMITED
F-78/1, 2nd Floor, Gali No. 3A,
Virender Nagar, New Delhi-110058,
West Delhi

.....Applicant No. 4/Transferor Company No. 4

AND

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KUNCHIT FABRICS PRIVATE LIMITED
Khasra No. 143, Village Gadaipur,
New Delhi-110030, South West Delhi
.....Applicant No. 5/Transferor Company No. 5

WITH

SURIDHI COMMERCIAL INFRA PRIVATE LIMITED
FF-28, Plot No. 1,
BG-1 & BG-2, Emaya, Paschim Puri,
New Delhi-110063, West Delhi
.....Applicant No. 6/Transferee Company

ORDER DELIVERED ON: 25.11.2022

CORAM:

SHRI P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

For the Applicant(s): Adv. Naresh Kumar

ORDER

PER SHRI. P.S.N. PRASAD, MEMBER (JUDICIAL)

This is 1st motion application jointly filed by the Applicant Companies under Section 230 to 232 of the Companies Act, 2013 (for brevity "The Act") read with Companies (Compromises, Arrangements and Amalgamation) Rule, 2016 (for brevity "The Rules") in relation to the Scheme of Amalgamation (for brevity the "The Scheme") proposed between the Applicant Companies. In terms of Sections 230 and 232 of the Act, the following prayers have been made for orders:-

a) *Dispense with the requirement of convening meetings of Equity Shareholders of the Transferor Companies No. 1 to 5 and the Transferee Company.*
b) *None of the Transferor Companies has any Secured Creditor.*
c) *Dispense with the Meeting of Secured Creditor of the Transferee Company*

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d) Dispense with the requirement of convening meetings of Un-secured Creditors of the Transferor Companies No 1 to 5 and the Transferee Company.

e) Direct service of notice of the present Application on (a) the Central Government through the office of the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi; (b) the Registrar of Companies, Delhi and Haryana, New Delhi; (c) The Official Liquidator, Ministry of Corporate Affairs, New Delhi; and (d) the Income Tax Department; and

f) Pass such other/further order(s) as this Hon'ble Tribunal may deem fit and proper.

2. That the affidavits in support of the application sworn for and on behalf of the Applicant Companies have been filed by Mr. Inder Dev Sharma, Mr. Kishore Kumar Grover, Mr. Bhupesh Kumar Dhingra, Mr. Bhim Kumar and Mr. Balwinder Singh being the authorized signatories.

3. That it is represented that the Scheme does not contemplate any reduction of share capital or corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. It is represented that the application filed by the Applicant Companies is maintainable in view of Rule 3(2) of the Rules and it is also represented that the registered office of all the Applicant Companies are situated within the territorial jurisdiction of this Tribunal and falls within the domain of Registrar of Companies, NCT, New Delhi.

4. That it is submitted that the proposed amalgamation is sought to be made under the provisions of Section 230 to 232 of the Companies Act, 2013 and the same if sanctioned by this Tribunal the appointed date as provided in the Scheme shall be **01.04.2020.**

5. That in relation to the Transferor Company No. 1, it has been represented that the company has 2 Equity Shareholders and consent affidavits from all the shareholders have been placed on record. It is further

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submitted that the Transferor Company No. 1 has NIL Secured and 4 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 1 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

6. That in relation to the Transferor Company No. 2, it has been represented that the company has 2 Equity Shareholders and consent affidavits from all the shareholders have been placed on record. It is further submitted that the Transferor Company No. 2 has NIL Secured and 3 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 2 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

7. That in relation to the Transferor Company No. 3, it has been represented that the company has 2 Equity Shareholders and consent affidavits from all the shareholders have been placed on record. It is further submitted that the Transferor Company No. 2 has NIL Secured and 4 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 3 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

8. That in relation to the Transferor Company No. 4, it has been represented that the company has 2 Equity Shareholders and consent affidavits from all the shareholders have been placed on record. It is further submitted that the Transferor Company No. 2 has NIL Secured and 1 Unsecured Creditor, whose consent affidavit has been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 4 seeks dispensation from convening and holding of their

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respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

9. That in relation to the Transferor Company No. 5, it has been represented that the company has 2 Equity Shareholders and consent affidavits from all the shareholders have been placed on record. It is further submitted that the Transferor Company No. 5 has NIL Secured and 7 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 5 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

10. That in relation to the Transferee Company, it has been represented that the company has 7 Equity Shareholders and consent affidavits from all the shareholders have been placed on record. It is further submitted that the Transferee Company has 1 Secured and 22 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferee Company seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

11. That in addition to the aforesaid Unsecured Creditors of the Transferee Company, the Company had some statutory and specified liability items. The scanned copy of the Report of the Chartered Accountant is reproduced below (Annexure A-6/8):

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ANNEXURE No.:- A-6/8

Sunil Grover & Co.
(Chartered Accountants)

RoomNo.305,SecondFloor,
Emca Chamber,51, Daryaganj,
New Delhi -110 002
Phone:9811389303
Email id: skca02@yahoo.com

To Whomsoever It May Concern

We have verified the books of accounts of **Suridhi Commercial Infra Private Limited [CIN: U74140DL2015PTC277563]** having its registered office at **FF-28, Plot No.1, BG-1 & BG-2, Emaya, Paschim Puri, New Delhi-110063** (the Company). On the basis of such verification, supporting documents and explanation given to us, we do hereby certify the status of "Statutory and Other Dues" as on 31st March 2022 and payment made by the Company against the same, as per the following detail:

Sl. No.	Particulars	Amount (Rs.)	Remark
1.	TDS Payable	4,02,584	Paid in Full[1]
2.	Salary Payable to Staff	29,500	Paid in Full[1]
3.	Director Remuneration Payable	45,000	Paid in Full[1]
4.	Interest Payable to Bank	23,600	Paid in Full[1]
5.	Security Deposits Received against Rental Income	86,18,650	See Foot Note 2
6.	Jubilant Foodworks Limited	98,293	See Foot Note 3
7.	Sagar Ratna Restaurants Private Limited	91,095	See Foot Note 4
8.	Construction Expenses Payable	9,81,479	See Foot Note 5
	Total	**10,290,201**	

1. The Company has made full and final payment of these statutory dues and other expenses, etc., (at serial 1 to 4 above) since then. Relevant ledger accounts and challans are enclosed. (Page Nos. 107 to 124, 1128)

2. Security deposits have been received against properties let out on rent and not due for payment as on the date of this certificate. It shall be either refunded to the respective tenants or adjusted with rent due on vacation of the let out premises by the tenant.

3. This is excess amount received from the tenant-Jubilant Foodworks Limited during the fy21-22 and adjusted against bills raised during the next financial year 2022-2023. Relevant ledger account for fy22-23 (for the period 01/04/2022 to 31/07/2022) is enclosed. (Page Nos. 1125 to 1128)

4. This is excess amount received from the tenant-Sagar Ratna Restaurants Private Limited during the fy21-22 and adjusted against bills raised during the next financial year 2022-2023. Relevant ledger account for fy22-23 (for the period 01/04/2022 to 31/07/2022) is enclosed.

(Page Nos. 1124 to 1127)

GROVER

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5. The Company has incurred construction expenses (at serial no. 8 above) and made the respective entries entered in its books of accounts in terms of the Accounting Standards and Generally Accepted Accounting Principles. Against the said liability of Rs.9,81,479/- (outstanding as on 31/03/2022), the company has either paid or written up (as no longer payable) payment of Rs.5,99,343/- during the financial period 01/04/2022 till date and balance of Rs.3,82,136/-is due for payment as on the date of this certificate. Detail of parties with their respective ledger accounts are enclosed. (Page Nos. 729 to 734)

Detail of Parties to whom construction expenses due as on 31/03/2022 and their payment status as on date is as under:-

Name of the unsecured creditors/suppliers	Opening Balance as on 31/03/2022 (In Rs.)	Paid till date (in Rs.)	Amount due for payment as on date (in Rs.)
Rachna Jain Marble Kh.No.270,Asola,Village Fatehpur Beri, Near Kidzee School,Chattarpur Mandir Road,New Delhi-110074	4,07,136	25,000	3,82,136
Ranjit Kumar Biswal 429-B,Shahpur Jat, Near Asiad Village, New Delhi-110049	18,000	18,000	Nil
Unique Gentech (Steel Supplier) A-23,Deepak Vihar,Uttam Nagar,New Delhi-110059	4,42,143	4,42,143	Nil
M. L. Saini Electric Co. C-2,Ground Floor, Housing Sociaty, Gurdwara Road,South Extension-I, South Delhi-110049	6,400	6,400	Nil
Enlive Solutions Private Limited M-304,Dharma Apartment, Plot No.2,IP Extension,Delhi-110092	1,02,000	1,02,000	Nil
Inventa Cleantec Private Limited D-176,Flatted Factory Complex,Okhla Phase-II New Delhi-110020	5,800	5,800	Nil
Total	**9,81,479**	**5,99,343**	**3,82,136**

For Sunil Grover & Co.
Chartered Accountants
FRN: 01[illegible]

Place : New Delhi
Dated : 23/08/2022

CA Sunil Grover
Proprietor
M. No 502104
UDIN : 22502104APVZNE7797

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12. We have heard the Ld. Counsel for the Applicant Companies and perused the averments made in the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Companies.

13. That the Transferor Company No. 1 – ALLIANCE REVOLUTION INFRA PROJECTS PRIVATE LIMITED was incorporated on 23.12.2013 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each.

14. That the Transferor Company No. 2 – BIGGEST GOODS CONSULTANCY AND TRADING PRIVATE LIMITED was incorporated on 22.05.2008 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 4,85,000/- divided into 48,500 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 4,85,000/- divided into 48,500 equity shares of Rs. 10/- each

15. That the Transferor Company No. 3 – BLEND COMMERCIAL INFRA PRIVATE LIMITED was incorporated on 02.06.2017 in the state of Delhi under the provisions of Companies Act, 2013. The authorised share capital of the Company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000/- divided into 10,000 equity shares of Rs. 10/- each.

16. That the Transferor Company No. 4 – CHRONICLE CLOTHING PRIVATE LIMITED was incorporated on 08.11.2013 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 10,00,000/- divided into 1,00,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 6,00,000/- divided into 60,000 equity shares of Rs. 10/- each.

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17. That the Transferor Company No. 5 – KUNCHIT FABRICS PRIVATE LIMITED was incorporated on 09.06.1995 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 10,00,000/- divided into 1,00,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 10,00,000/- divided into 1,00,000 equity shares of Rs. 10/- each.

18. That the Transferee Company – SURIDHI COMMERCIAL INFRA PRIVATE LIMITED was incorporated on 05.03.2015 in the state of Delhi under the provisions of Companies Act, 2013. The authorised share capital of the Company is Rs. 2,04,00,000/- divided into 20,40,000 equity shares of Rs. 10/- each. The issued and subscribed share capital of the Company is Rs. 1,23,76,930/- divided into 12,37,693 equity shares of Rs. 10/- each. The paid-up share capital of the Company is Rs. 1,00,02,420/- divided into 10,00,242 fully paid-up equity shares of Rs. 10/- each. The Company has forfeited 2,37,451 partly paid up equity shares for Non Payment of call on money which is only Rs. 11,88,010/-.

19. It is seen that the Board of Directors of all the Applicant Companies vide meetings held on 18.08.2022 have unanimously approved the proposed Scheme of Amalgamation. Copies of such resolutions passed have been placed on record.

20. That the Applicant Companies have filed the Audited Financial Statements for the financial year ended 31st March, 2022.

21. That the Applicant Companies have submitted vide Affidavits dt. 21.09.2022 that no inspection, inquiry or investigation is pending against any of the Applicant Companies.

22. That the Certificate of respective statutory auditors of the Applicant Companies have been placed on record confirming that the accounting treatment in the scheme is in conformity with Section 133 of the Companies Act, 2013.

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23. That the Report on Valuation of Shares & Share Exchange Ration dated 16.08.2022, obtained from Registered Valuer, has also been placed on record.

24. We have gone through the report annexed at Annexure A-6/8 in relation to the 'Statutory and other dues' of the Transferee Company. We have observed that an amount of Rs. 3,82,136 is due to the unsecured creditor namely Rachna Jain Marble. However, the same is not mentioned in the list of unsecured creditors of the Transferee Company (Pg. 619) and also no consent affidavit is annexed along with the application with respect to the same. We presume that the due amount is paid subsequent to filing of the present application. We, hereby, direct the Transferee Company to obtain written consent/no objection certificate as the case may be, if the amount is still unpaid and keep the same in their records.

25. In relation to the Transferee Company, we have further observed that the unsecured creditors representing total value of Rs. 44,00,29,473/- have given their consent affidavits with respect to the Scheme of Amalgamation.

26. As per the Section 230 of the Companies Act, 2013, the Tribunal is empowered to dispense with the meeting of shareholders if they have given their consent. Further, in view of Section 230(9) of the Companies Act, 2013, the Tribunal is empowered to dispense with calling of a meeting of creditor or class of creditors where such creditors or class of creditors, having at least ninety per cent value, agree and confirm, by way of affidavit, to the scheme of compromise or arrangement.

27. In sequel to the above, in our considered view, the following directions are given: -

A. **In relation to the Transferor Company No. 1:**

i. With respect to Shareholders:

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Since all the shareholders have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting of shareholders is dispensed with.

ii. With respect to Secured Creditors:

Since there is no Secured Creditor, therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting of Unsecured Creditors is dispensed with.

B. **In relation to the Transferor Company No. 2:**

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

Since there is no Secured Creditor, therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

C. **In relation to the Transferor Company No. 3:**

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

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ii. With respect to Secured Creditors:

Since there is no Secured Creditor, therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

D. **In relation to the Transferor Company No. 4:**

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

Since there is no Secured Creditor, therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since the Unsecured Creditor has already placed its consent-affidavit on record, therefore, the necessity of convening and holding a meeting is dispensed with.

E. **In relation to the Transferor Company No. 5:**

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

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Since there is no Secured Creditor, therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

F. **In relation to the Transferee Company:**

i. With respect to Shareholders:

Since all the Shareholders have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

Since the Secured Creditor has already placed its consent-affidavit on record, therefore, the necessity of convening and holding a meeting is dispensed with.

iii. With respect to Unsecured Creditors:

Since the Unsecured Creditors constituting over 90% of the total value have already placed their consent-affidavits on record, therefore, the necessity of convening and holding a meeting is dispensed with.

28. **Accordingly, in terms of the above order, CA (CAA) 95 (ND) of 2022 is allowed and is accordingly disposed of.**

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(RAHUL BHATNAGAR)
MEMBER (TECHNICAL)

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(P.S.N. PRASAD)
MEMBER (JUDICIAL)